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Case Number: BC674584 Hearing Date: August 12, 2026 Dept: 509

Vickers Holding & Finance Inc. v. Jossiv Kim, et al.

MOTION TO MODIFY THE COURT'S MARCH 20, 2020, ASSIGNMENT ORDER

MOVING PARTY: Judgment Creditor Vickers Holding

RESPONDING PARTY(S): Judgment Debtors Jossiv Kim and Angelina Kim

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Vickers Holding and Finance, Inc., (Judgment Creditor) brought this action against Jossiv Kim and Angelina Kim (Judgment Debtors) seeking to recognize and enforce a judgment entered against them in the Netherlands.

In November 2018, this Court entered a judgment against Judgment Debtors of which an outstanding balance of over \$10 million remain.

On March 20, 2020, this Court granted an assignment order in favor of Judgment Creditor.

Judgment Creditor now moves for an order modifying the March 20, 2020, assignment order. Judgment Debtors opposed.

TENTATIVE RULING:

Judgment Creditor's Motion to Modify the Court's March 20, 2020, Assignment Order is CONTINUED to December 11, 2026.

By November 16, 2026, at 4pm, Judgment Creditor is to file a supplemental briefing.

Judgment Debtors may file a supplemental response no later than December 7, 2026, at 4pm.

Judgment Creditor is ordered to give notice to all interested parties or entities, as may be required by law.

DISCUSSION:

Modify Assignment Order

I. Legal Standard

"Either the judgment creditor or the judgment debtor may apply to the court on noticed motion for an order to modify or set aside the assignment order." (Code Civ. Proc. § 708.560, subd. (a).) The moving party must give notice of the motion to the other party personally or by mail. (Ibid.) "The court shall make an order modifying or setting aside the assignment order upon a showing that there has been a material change in circumstances since the time of the previous hearing on the assignment order." (Id. at subd. (b).) "The court may order a reassignment of the rights to payments as necessary." (Ibid.) "The order shall state whether and to what extent it applies to payments already made." (Ibid.)

II. Analysis

Judgment Creditor moves for an order modifying the March 20, 2020, Assignment Order on grounds that the Judgment Debtors have stopped collecting money from the assigned payors and have begun utilizing alternative means of receiving income. (See Mot., generally.)

As an initial matter, the motion discusses various violations of the March 20, 2020, Assignment Order. To any extent the existing assignment order was violated is not at issue in this motion. Such determinations are better left to other motion types.

Instead, the Court has authority to modify its previous assignment order due to a material change in circumstances since the time of the original hearing. (Code of Civ. Pro. § 708.560, subd. (b).)

The Court turns to Judgment Creditor's proposed order. It requests, among other things:

To the extent necessary to satisfy the unpaid November 6, 2018 Judgment in favor of Vickers (the "Judgment"), including accrued interest and costs, the Assigned Payment Rights – defined as all present and future non-exempt, legally enforceable rights to payment due or to become due to Judgment Debtors within the scope of Cal. Code of Civ. P. section 708.510 -- are assigned to Vickers, subject to any applicable exemption or statutory limitation established by Judgment Debtors through competent evidence.

([Proposed] Order at ¶3.)

From the Proposed Order, it appears that Judgment Creditor is seeking a blanket assignment order that it can utilize against any entity it discovers makes payments to Judgment Debtors going forward. Indeed, it appears that the law allows for such a blanket order. In *Philippine Export & Foreign Loan Guarantee Corp. v. Chuidian* (1990) 218 Cal.App.3d 1058 the Court granted an assignment order against "all debts owing or to become owing to the Philippine Export [Debtor] from individuals or entities located in the United States." (Id. at pp. 1099-1100, emphasis added.)

However, this Court is hesitant to provide such a blanket assignment order. The utilization of such a broad order may reach beyond the anticipated scope and bring about unforeseen consequences such as reaching into protected categories of income despite Judgment Creditor's diligence to avoid as such. While the Court acknowledges Judgment Creditor's arguments, there is nothing to suggest that such a blanket order is necessary at this time.

Here, the only change in circumstance demonstrated is that the current entities captured by the March 20, 2020, Assignment Order no longer make payments to Judgment Debtors. [FN 1] (Stolyar Decl. ¶9.) However, beyond allegations that he “received substantial cash gifts from overseas” or in 2023, worked “unofficially for cash,” there is no change in circumstances that indicate a need to add new entities to the prior assignment order. (Stolyar Decl. ¶¶12-13.) There is no evidence to support that Judgment Debtors have any additional rights to payments due or to becoming due in the future. However, Section 708.510 requires “a right to payment due, or to become due.” (Code of Civ. Pro. § 708.510, subd. (a); see Landstar Global Logistics, Inc. v. Robinson & Robinson, Inc. (2013) 216 Cal.App.4th 378, 390, [“Statutory provisions governing these remedies are subject to strict construction.”]) Simply, there is no evidence that Judgment Debtors have any additional payment rights that would warrant a modification of the current order.

Further, this modification does not remedy the underlying issues Judgment Creditor presents in its moving papers. This instant motion does nothing to compel Judgment Debtors to comply with the March 20, 2020, Assignment Order nor does it require Judgment Debtors to inform Judgment Creditor as to the identity of any potential new payors. However, the Court notes that Judgment Creditor does not indicate that any discovery has been completed regarding the source of Judgment Debtors new income since the recent closure of bankruptcy proceedings. Therefore, this motion appears premature. Judgment Creditor has not discovered the entities which may be reasonably captured by this proposed assignment order, to the extent any exists.

Accordingly, Judgment Creditor’s Motion to Modify the Court’s March 20, 2020, Assignment Order is CONTINUED to December 11, 2026

IT IS SO ORDERED.

Dated: August 12, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Notably this may support vacating the March 20, 2020, Assignment Order instead of simply modifying such order if Judgment Debtors are no longer owed payments from such entities.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.